

5.	PC20200201	JOSEF DULLER ET AL VS GABRIELE MCINNIS ET AL
MOTION FOR NUNC PRO TUNC ENTRY OF JUDGMENT		

Plaintiffs file this motion for nunc pro tunc entry of judgement. They maintain the clerk of the court failed to enter judgement following the court's ruling on October 9, 2025.

A judgment is the final determination of the rights of the parties (Code Civ. Proc., § 577) " „when it terminates the litigation between the parties on the merits of the case and leaves nothing to be done but to enforce by execution what has been determined.“ ” (*Sullivan v. Delta Air Lines, Inc.* (1997) 15 Cal.4th 288, 304, quoting *Doudell v. Shoo* (1911) 159 Cal. 448, 453.) “ „It is not the form of the decree but the substance and effect of the adjudication which is determinative. As a general test, which must be adapted to the particular circumstances of the individual case, it may be said that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.“ ” (*Griset v. Fair Political Practices Com.* (2001) 25 Cal.4th 688, 698, italics added, quoting *Lyons v. Goss* (1942) 19 Cal.2d 659, 670.)

In this matter, parties agree the court issued its' Ruling on Submitted Matter on October 9, 2025. The ruling adjudicated the merits of the case, made orders awarding damages, and awarded attorney fees. The court left no issue on the merits of the case unresolved. On October 31, 2025, the court responded to Plaintiffs' request for a statement of decision by confirming that the Ruling on Submitted Matter dated October 9, was the FINAL determination and not a tentative ruling and as a result, no statement of decision was required. Both the ruling and response to the request for a statement of decision were served by the court on the parties. As such, the court did enter judgement as required and the motion for nunc pro tunc entry of judgement is denied.

TENTATIVE RULING #5: THE MOTION PRO TUNC ENTRY OF JUDGMENT IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

May 29, 2026
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LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.